

IKE SOLUTIONS LLC — LEGAL COMMAND CENTER

Case Ref: IKE-TCA-001 | Matter: NJ Tort Claims Act Notice | Claimant: Isionnah Howard | Status: DRAFT — AWAITING APPROVAL | Prepared: June 06, 2026

NOTICE OF TORT CLAIM

Pursuant to N.J.S.A. 59:8-1 *et seq.* (New Jersey Tort Claims Act)

Claimant: Isionnah Howard • Respondents: City of Newark & Newark Police Department

⚠ CRITICAL DEADLINE — READ BEFORE FILING

N.J.S.A. 59:8-8 requires this Notice to be filed within 90 days of the date of the incident. Failure to file within 90 days permanently bars the civil claims against all named public entities. Confirm the exact incident date and file immediately if the window remains open.

I. CLAIMANT INFORMATION

Full Legal Name:	Isionnah Howard (also known as Isirah Howard)
Current Address:	[CLAIMANT CURRENT ADDRESS — FILL IN]
Mailing Address:	[IF DIFFERENT FROM ABOVE]
Phone Number:	[CLAIMANT PHONE]
Attorney / Representative:	[PUBLIC DEFENDER NAME & ADDRESS — or "Pro Se" if none]
Date of Birth:	[DATE OF BIRTH]

II. RESPONDENT PUBLIC ENTITIES (SERVICE ADDRESSES)

Entity	Service Address	Role
City of Newark Office of the City Clerk	920 Broad Street, Room 314 Newark, NJ 07102	Primary municipal respondent; employer of NPD
City of Newark Office of Corporation Counsel	920 Broad Street, Room 316 Newark, NJ 07102	Legal representative of City; concurrent service required
Newark Police Department	31 Green Street Newark, NJ 07102	Law enforcement entity responsible for unlawful detention

Sgt. Rondus, Newark PD

c/o Newark Police Department
31 Green Street, Newark, NJ
07102

Individual officer with recorded admission of systemic policy

State of New Jersey
Office of the Attorney General

Richard J. Hughes Justice Complex
25 Market Street, Trenton, NJ
08625

Include if state actors or state agents involved

III. INCIDENT INFORMATION

Date of Incident:

[EXACT DATE OF ARREST — CRITICAL FOR 90-DAY CLOCK]

90-Day Filing Deadline:

[INCIDENT DATE + 90 DAYS]

Location of Arrest:

City of Newark, Essex County, New Jersey

Detention Facilities:

Newark Police Department custody, and hospital custody at [Beth Israel Medical Center and/or St. Barnabas Medical Center — confirm which]

Duration of Detention:

Approximately six (6) days (approximately 144 hours) from date of warrantless arrest through date of release — without any judicial probable cause determination

IV. CIRCUMSTANCES GIVING RISE TO CLAIMS

On or about [INCIDENT DATE], Claimant Isionnah Howard was arrested by officers of the Newark Police Department without a warrant. Following arrest, Claimant — a medically vulnerable individual who requires a tracheostomy suction kit and prescribed medication to sustain respiratory function — was placed in police custody and subsequently transferred to hospital custody, where she remained under the continuous control and authority of the Newark Police Department.

During the entirety of her detention — a period of approximately six (6) days, or approximately 144 hours — Claimant was never brought before a judicial officer for a determination of probable cause, in direct and knowing violation of the constitutional mandate established by the United States Supreme Court in *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991), which requires a judicial probable cause determination within 48 hours of a warrantless arrest.

During this unlawful detention, Claimant was denied access to her medically necessary tracheostomy suction kit and prescribed medication. Sergeant Rondus of the Newark Police Department made a recorded statement confirming that the Department maintains a departmental *policy* of holding hospitalized detainees in custody indefinitely — without judicial review — until the detainee is deemed "medically cleared," regardless of the 48-hour constitutional mandate established by *McLaughlin*. This recorded admission establishes that

Claimant's prolonged unlawful detention was not an isolated error or oversight, but rather the product of a deliberate, systemic departmental policy.

The complaining witness — Claimant's boyfriend — has provided a sworn affidavit confirming that: (a) the incident constituted mutual combat; (b) he initiated physical contact; and (c) he explicitly did not press charges against Claimant. The criminal charges therefore lack the threshold evidentiary foundation to justify either the initial arrest or the prolonged six-day detention.

V. LEGAL CLAIMS ASSERTED

Claim 1 — Unlawful Detention: Violation of 48-Hour Rule

(U.S. Const., Amend. IV & XIV; *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991); 42 U.S.C. § 1983)

Claimant was held for approximately 144 hours without a judicial probable cause hearing. The 48-hour constitutional mandate was violated by approximately 96 hours. The recorded admission of Sgt. Rondus establishes that this violation was the direct result of an established departmental policy, not an inadvertent error, subjecting the City of Newark to both compensatory and punitive liability under 42 U.S.C. § 1983 and the New Jersey Tort Claims Act.

Claim 2 — Deliberate Indifference to Serious Medical Needs

(U.S. Const., Amend. VIII & XIV; 42 U.S.C. § 1983; *Estelle v. Gamble*, 429 U.S. 97 (1976))

Claimant is a tracheostomy patient who requires continuous access to a suction kit and prescribed respiratory medication to breathe safely. Denial of these medically necessary items during a six-day period of custodial confinement constitutes deliberate indifference to a known, serious medical need. This deliberate indifference rendered Claimant's detention not merely unlawful, but life-threatening, and gives rise to liability under the Eighth and Fourteenth Amendments and 42 U.S.C. § 1983.

Claim 3 — Americans with Disabilities Act / Rehabilitation Act Violations

(42 U.S.C. § 12132; 29 U.S.C. § 794; *Pennsylvania Dep't of Corr. v. Yeskey*, 524 U.S. 206 (1998))

Claimant is a qualified individual with a disability (tracheostomy / respiratory impairment). The City of Newark, as a public entity subject to Title II of the ADA, failed to provide reasonable accommodations during Claimant's detention, failed to ensure access to essential medical equipment, and failed to modify its detention and hospitalized-detainee policies to avoid discriminatory impact on Claimant's disability.

Claim 4 — Civil Rights Violations Under 42 U.S.C. § 1983

(42 U.S.C. § 1983; *Monell v. Dep't of Social Services*, 436 U.S. 658 (1978))

The actions of Sgt. Rondus and Newark Police Department officers, taken under color of state law and pursuant to an established departmental policy or custom — as confirmed by Sgt. Rondus' recorded admission — deprived Claimant of rights secured by the Fourth and Fourteenth Amendments, including the right to be free from unreasonable seizure, the right to timely judicial review, and the right to substantive and procedural due process.

Under *Monell*, the City of Newark bears direct liability for constitutional deprivations caused by its official policies and customs.

Claim 5 — New Jersey Civil Rights Act

(N.J.S.A. 10:6-2; N.J. Const. Art. I, ¶¶ 1, 7, 8)

Defendants' actions violated Claimant's rights under the New Jersey Constitution and the New Jersey Civil Rights Act, including the right to be free from unlawful arrest and detention, the right to adequate medical care while in custody, and the right to equal protection of the laws. The New Jersey Civil Rights Act authorizes an award of attorney's fees to a prevailing claimant.

VI. INJURIES AND DAMAGES

Physical Injuries:	Respiratory distress and medical deterioration resulting from denial of tracheostomy suction kit and prescribed medication during six-day detention; physical manifestations of prolonged unlawful confinement
Emotional / Psychological:	Severe emotional distress, trauma, fear, and mental anguish arising from prolonged unlawful detention, life-threatening medical neglect, and constitutional violations
Loss of Liberty:	Unlawful deprivation of freedom for approximately 96 hours beyond any constitutionally permissible limits
Special Damages:	Medical expenses, lost wages and opportunities, costs of legal representation
Future Damages:	Ongoing medical treatment, psychological counseling, future lost wages; to be determined upon completion of discovery and expert assessment
Punitive Damages:	Warranted based on knowing, willful, and systemic constitutional violations confirmed by Sgt. Rondus' recorded admission
Amount Claimed:	[AMOUNT TO BE DETERMINED — consult attorney; may state "to be established upon completion of discovery" or a specific demand figure]

VII. EVIDENCE AND WITNESSES KNOWN AT TIME OF FILING

- **Recording of Sgt. Rondus, Newark PD** — Audio/video recording in which Sgt. Rondus admits that the Newark Police Department maintains a policy of holding hospitalized detainees indefinitely without judicial review pending medical clearance. *Preserve and secure this recording immediately.*
- **[Boyfriend's Full Legal Name]** — Complaining witness; sworn affidavit confirming mutual combat, that he initiated physical contact, and that he explicitly did not press charges against Claimant
- **Body-Worn Camera (BWC) Footage** — Footage from the arrest and the six-day hospital detention period; subject to preservation demand and discovery request filed herewith

- **Hospital Medical Records** — Records from **[Beth Israel Medical Center and/or St. Barnabas Medical Center]** documenting Claimant's medical condition, treatment history, and the denial of tracheostomy equipment during detention
- **Newark PD Internal Policies** — Written policies, procedures, and orders governing hospitalized detainees and the 48-hour rule (subject to discovery)
- **Detention and Booking Records** — Arrest logs, booking sheets, hold logs, and medical clearance documentation covering the full period of Claimant's detention

VIII. PRESERVATION DEMAND

Claimant hereby demands that the City of Newark, the Newark Police Department, all named officers, and all affiliated agencies **immediately preserve all evidence, records, communications, video footage, medical records, internal policies, and electronically stored information** related to Claimant's arrest, detention, and medical treatment as described herein. This preservation obligation attaches as of the date of receipt of this Notice.

Any destruction, alteration, loss, or spoliation of evidence following receipt of this Notice will give rise to an adverse inference instruction, sanctions, and additional legal claims for spoliation. This demand is made pursuant to *Zubulake v. UBS Warburg*, 229 F.R.D. 422, and its progeny, as well as applicable New Jersey evidence preservation obligations.

IX. STATUTORY COMPLIANCE STATEMENT

This Notice is submitted pursuant to N.J.S.A. 59:8-4, which requires a claimant seeking damages from a public entity to include: (a) the claimant's name and address; (b) the date, place, and circumstances of the occurrence; (c) a general description of the injury or loss; (d) the name of the public entity and employee(s) causing the injury; and (e) the amount claimed. This Notice satisfies each statutory element to the extent information is presently available. Claimant reserves all rights to supplement or amend this Notice as additional information becomes known through the course of discovery. Nothing herein constitutes a waiver of any claim, right, or remedy.

X. DEMAND FOR RELIEF

Claimant hereby demands: (1) full compensatory damages for all injuries, losses, and damages described herein; (2) punitive damages for willful and systemic constitutional violations; (3) injunctive relief requiring the Newark Police Department to cease and desist from its unconstitutional policy of holding hospitalized detainees without judicial review; (4) attorney's fees and costs pursuant to 42 U.S.C. § 1988 and N.J.S.A. 10:6-2; and (5) any such other and further relief as the Court deems just and equitable.

Claimant invites prompt engagement by the City of Newark's legal representatives to resolve this matter. Failure to respond or engage in good-faith settlement discussions will result in the immediate commencement

of civil litigation in the United States District Court for the District of New Jersey and/or the Superior Court of New Jersey, Essex County.

XI. CERTIFICATION AND SIGNATURE

I certify that the foregoing statements made by me are true and that I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.

Date Filed:

Signature of Claimant — Isionnah Howard

Signature of Attorney or Authorized Representative (if applicable)

Print Name:

NJ Bar No.:

Firm / Address:

Phone:

XII. SERVICE INSTRUCTIONS — CERTIFIED MAIL REQUIRED

File via Certified Mail, Return Receipt Requested (CMRRR) — simultaneously to all addresses below on the same date. Keep all tracking numbers, green card receipts, and affidavits of mailing. The date of mailing to the United States Postal Service constitutes the operative filing date under New Jersey law.

1. City of Newark — Office of the City Clerk

920 Broad Street, Room 314, Newark, NJ 07102

2. City of Newark — Office of Corporation Counsel

920 Broad Street, Room 316, Newark, NJ 07102

3. Newark Police Department

31 Green Street, Newark, NJ 07102

4. State of NJ — Office of the Attorney General (include if state actors involved)

25 Market Street, Trenton, NJ 08625

This document is a legal draft for review purposes only. It does not constitute legal advice. Consult a licensed New Jersey attorney before filing. Nothing in this document shall be filed, served, or transmitted without the explicit approval of Isiah Tarik Howard, Trustee.

DRAFT — DO NOT FILE